

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

In re: HILARY TYLER
License No. 068.0000522

}
} Docket Nos. MH 03-0207, and D-2007-56
}

DECISION ON MOTION TO CONTINUE AND MOTION TO MODIFY CONDITIONS

Appearances:

Prosecuting the case: Rachel Allen, Esq.
Respondent: did not appear

Members Participating:

Tammy Austin, Chair
Bill Scarlet
Michael Doyle, Public Member
Daniel Coane, *ad hoc* Public Member

Presiding Officer: George K. Belcher

FINDINGS OF FACT AND DISCUSSION

This matter came before the Board of Allied Mental Health Practitioners on January 18, 2018 at the Office of Professional Regulation Conference Room at the City Center in Montpelier, Vermont.

By stipulation and consent order entered on January 18, 2008, the Respondent's license as a mental health counselor was suspended for three years based, in part, upon facts showing that the Respondent had entered into an inappropriate sexual relationship with a client. After the three year suspension, the Respondent could petition for reinstatement if she complied with conditions before applying for reinstatement, including an ethics course completion and psychological evaluations with positive recommendations of fitness. On October 12, 2017 the Board received a letter from the Respondent requesting a modification of the ethics course condition. The State filed a timely opposition to the Motion for Modification on November 21, 2017. The matter was eventually set for hearing on January 18, 2018 at 9:00 AM. On January 17, 2018 (the afternoon before the hearing) the Respondent sent an email to the Docket Clerk which stated, "I am requesting a continuance for a hearing set for tomorrow morning at 9 am. I have sent a request to Rachel Allen as well. She asked that I make the request of you." The State took no position on the requested continuance.

On the morning of January 18, 2018 the below-signing Presiding Officer sent an email to the Docket Clerk advising that the Motion for Continuance would be considered at the scheduled time of the hearing before the Board and that the Respondent could attend by telephone or in person if she wished. The Respondent did not appear by telephone or in person.

The Presiding Officer and the Prosecuting Attorney explained to the Board, on the

record, the status and history of the case. Generally, procedural questions arising before administrative hearings for professions which are governed by the Office of Professional Regulation, including motions for continuance, are handled by the assigned presiding officers without the necessary participation of the board. Continuances for cause are routinely granted either by stipulation, or following abbreviated argument. This case is somewhat different.

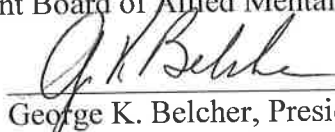
This condition-modification matter has been pending since October of 2017. The Respondent has the burden to persuade the Board that the Board, in its discretion, should modify the conditions. The Respondent requested the continuance on the afternoon of the day before the scheduled hearing. The Respondent gave no specific reasons to the Board for the requested continuance. The Board has a responsibility to move matters forward and avoid last-minute delays where no persuasive reasons for delay are offered. It was the consensus of the Board that the Presiding Officer should not grant the continuance and that the Motion to Modify Conditions should be dismissed for failure of the Respondent to pursue the matter in a timely manner. The Presiding Officer was of the same mind.

Order

The Motion for Continuance is DENIED. Respondent's Motion for Modification of Conditions is DISMISSED.

Vermont Board of Allied Mental Health Practitioners

By:


George K. Belcher, Presiding Officer

Date: January 18, 2018

OFFICE OF PROFESSIONAL REGULATION

DATE OF ENTRY: 1/19/18

APPEAL RIGHTS

This is a final administrative determination by the Vermont Board of Allied Mental Health Practitioners. A party aggrieved by a final decision of a board may appeal this decision by filing a written Notice of Appeal with the Director of the Office of Professional Regulation, Vermont Secretary of State, 89 Main Street, Fl. 3, Montpelier, VT 05620-3402 within 30 days of the entry of this order. If an appeal is filed, the Director of the Office of Professional Regulation shall assign the case to an appellate officer. The review shall be conducted on the basis of the record created before the board. In cases of alleged irregularities in procedure before the board, not shown in the record, proof on that issue may be taken by the appellate officer. 3 V.S.A. §§ 129(d) and 130a. To request a stay of the Board's decision, please refer to the attached stay instructions.